

Day - 3



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Officers Making Officers

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3rd Floor Cheap And Best Super Mart Next to V Mart
Boring Road Chauraha, Patna-01
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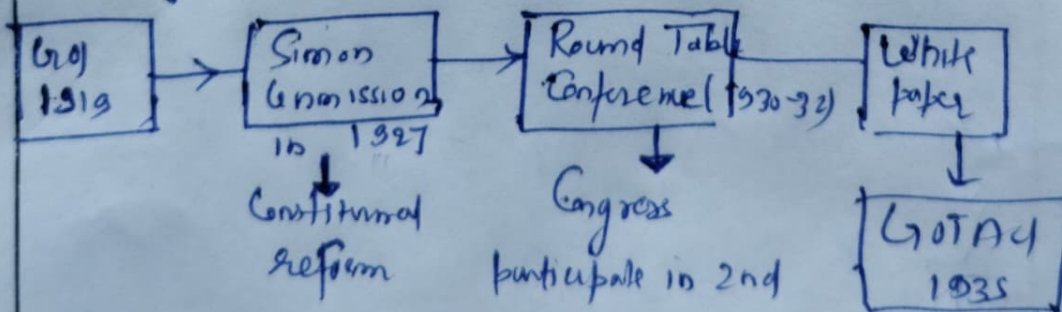
प्रश्नों की
संख्या
दीजिए

Candidate
Must not
Write on
Margin

Q Discuss how Government of India Act 1935 laid Constitutional foundation of modern Indian State. Which key feature of this Act were later retained in Constitution.

Ans Government of India Act 1935 is called blue print of Indian Constitution which was drafted on recommendation of round table Conference released in white paper

Background





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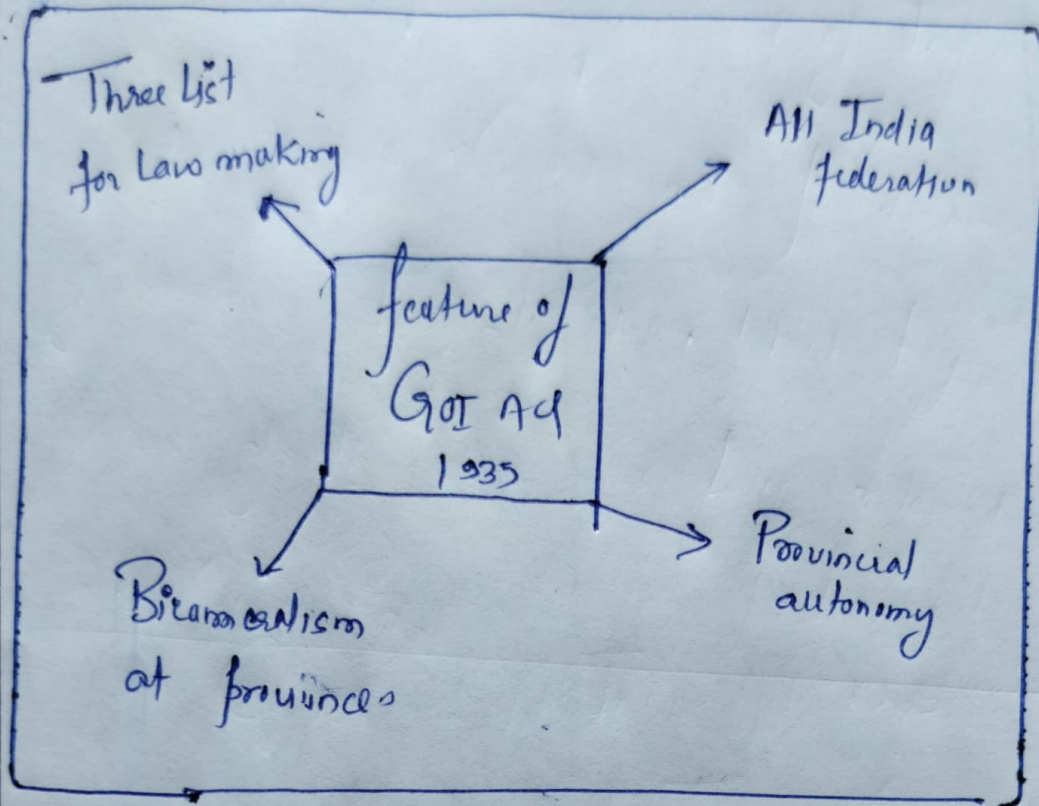
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GOI Act 1935 → Laid Constitutional ~~from~~ foundation

<u>GOI Act 1935</u>	<u>Constitutional foundation</u>
1) <u>All India Federation</u> ↓ Comprise of British provinces and princely state	1) foundation of federal Structure Comprise of States with strong Centre



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2) Division of Power
↓
divide legislative power
in 3 list — (i) federal
(ii) Provincial (iii) Concurrent

2) Addition of 7th
Schedule Comprise
of Union, State,
Concurrent list

3) Provincial autonomy
↓
autonomy granted to
States in some matter

3) Appointment
of governor in
State to check on
misuse of autonomy by
State

4) Bicameralism
↓
Introduced in 6 provinces
Madras, Bombay, Bengal,
United Provinces, Bihar,
Assam

4) Creation of
Legislative Council
along with assembly
at State

5) Public Service Commission
↓
Establishment of federal
Provincial, joint public
Commission for recruitment

6) Under Art 315
UPSC, SPSC,
JPSS has been
formed.



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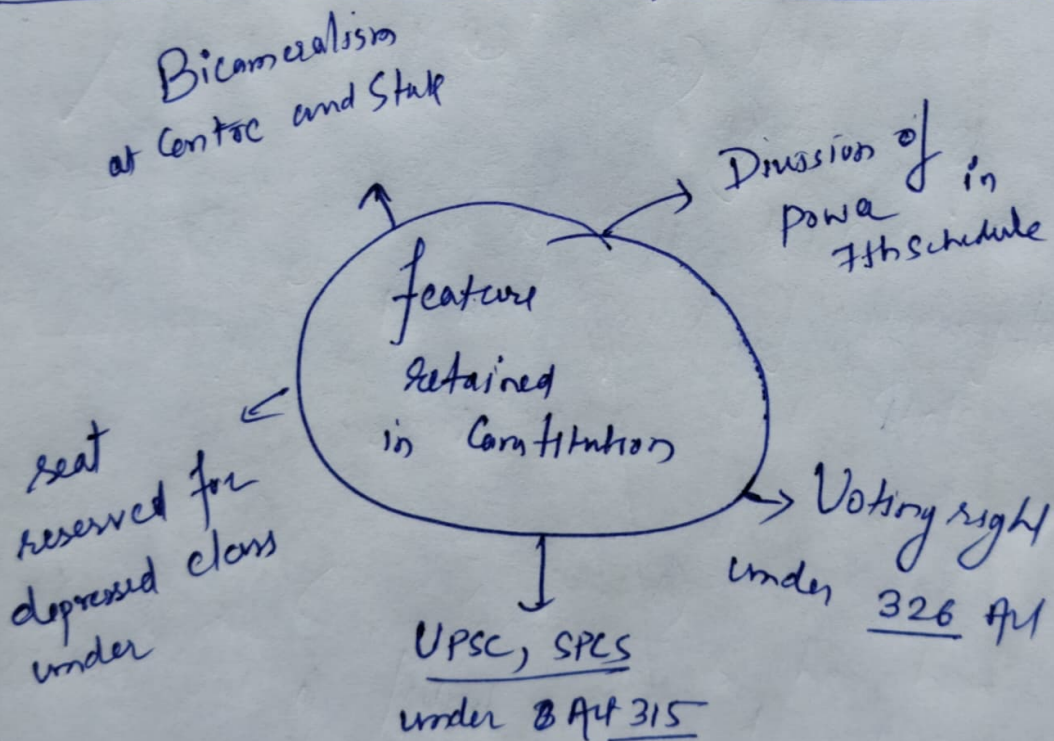
v) Establishment of federal
Court for solving dispute
between provinces and centre

vi) Federal
Court become
Supreme Court
of India

vii) Expansion of franchise
of Voting to 10%
of adult population

viii) Provision
of Universal
adult franchise
under Art 326

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Significance → administrative experience
to Indian Leader
→ Congress, Muslim League
become active
First attempt to define federation

Limitation → Complete British Control
JL Nehru Called "GoI Act 1935"
is new chapter of Slavery
→ Communal representation
→ Discretionary power with Governor
General

Thus GoI Act 1935 become blueprint
of Indian Constitution, Although it has
some limitation but containing Number
of provision which shaped political
Constitutional Landscape of Independent
India.